9. Then, on February 7th, 2020, the applicants filed the present application in court against Arichat Metal, Mr. Boudreau, and Mr. Boucher, alleging that the respondents are liable on a joint and several basis for the judgment issued in the 2010 Proceeding against 176 NSL. The applicants further allege that an asset purchase-and-sale transaction between 176 NSL and Arichat Metal was a sham.

10. In 2021, the respondents filed a notice of motion for summary judgment on the evidence, alleging that the applicants' claim against the respondents is out of time pursuant to the *Limitation of Action Act*. The applicants filed the affidavit of Scott Johnson, sworn on May 20, 2021 ("Johnson Affidavit"), in support of their contest of the respondents' motion for summary judgment. Mr. Johnson, a national property claim consultant with Allstate Insurance Company of Canada ("Allstate"), is the insurance adjuster for the applicants. Allstate became subrogated to the rights of the applicants in the 2010 Proceeding.[2]

11. Upon receiving the Johnson Affidavit, the AMF Respondents determined that his cross-examination at the motion for summary judgment would be necessary. This was not possible because the hearing had been scheduled to be heard *via* videoconference due to the pandemic, and because of the court's protocols at the time. As a result, the summary judgment motion was adjourned without date, although an adjournment would have been needed anyway due to the need for production which arose from the Johnson Affidavit.

12. The respondents filed a motion for production, and also for discovery of legal counsel witnesses, on November 16, 2021, arguing that paragraph 16 of the Johnson Affidavit constituted waiver of solicitor/client privilege over the conversation between Mr. Johnson and the former counsel for the applicants, Shelley Wood. In particular, the respondents sought production of an email sent from Ms. Wood to Mr. Johnson on December 20, 2016 ("2016 Email"), in which the new corporate entity, Arichat Metal, was discussed.

13. Justice Glen G. McDougall heard the motion for production and discovery on March 15, 2022. By written decision on October 14, 2022, McDougall J. allowed the production of the 2016 Email, with redactions, to the respondents and third party, agreeing that privilege had been waived over that communication. Justice McDougall did not grant the motion for discovery of legal counsel witnesses.

---

2 Johnson Affidavit, paras 1 and 8.